

Protecting the Investment Map: First, Second, Third

The decision in one paragraph

The attorney's caution is real: since *Alice* (2014), investment-analysis software faces abstract-idea rejections. But a provisional application is never examined and cannot be rejected; for about \$1,500 it holds the priority date for 12 months while a specialist answers whether claims can be drafted to survive. The hard deadline is on or about **May 4, 2027** (one year from the first delivery and sale). Filing a provisional preserves the patent option; not filing forecloses it permanently.

FIRST — this week (about \$65 total)

1. **Trade secret hygiene (free, and the real methodology protection).** Confidentiality and IP clauses in the HCDC agreement before anything is shown: CDS retains all tool and method IP, client licensed for internal use only, no partner access, no sublicensing. Calibrated coefficients are never published, demoed with real values, or included in any patent filing. A patent publishes; a trade secret protects the tuning forever.
2. **Copyright registration (DIY, ~\$65).** Register the Investment Map code at copyright.gov as a computer program (deposit the source of the current build). Enables statutory damages and attorney fees against copying.

SECOND — this month (the \$1,500)

3. **Second opinion from a REGISTERED patent practitioner who drafts software patents.** Confirm the current attorney's USPTO registration status; if he is a general IP attorney, this is a specialist question. Bring the IP Disclosure Package (Aug 3, 2026) and the Portfolio Embodiments Addendum (Oct 6, 2026). The one question: can claims be drafted to specific technical mechanisms that survive section 101? Low-cost routes: USPTO Patent Pro Bono Program; law school IP clinics.
4. **File the provisional before the HCDC build and proposal.** If the specialist sees any path, file. The provisional is unexamined, cheap, confidential, and buys 12 months of "patent pending."
5. **Build the technical anchors into the Portfolio demonstration** (these answer "something outside the software," and they are already on the roadmap): the multi-source GIS acquisition pipeline (built: multi-service queries, centroid dedup, offline cache); the environmental screening ring (live regulatory database queries + proximity computation); a monitoring and alert layer that watches external records and flags when a saved scenario's assumptions are invalidated; closed-loop coefficient calibration from actual outcomes.

THIRD — within 60 to 90 days (the \$1,350)

6. **Trademark "The Investment Map" and the CDS marks.** Most certain value of the three filings, but no deadline pressure: rights accrue from first use, which already exists. The patent has a clock; the trademark does not.

Month 10 to 12 after the provisional

7. **The real patent decision.** Non-provisional runs roughly \$8,000 to \$15,000+ over the following years.

Decide based on: the specialist's read, whether the technical-anchor features are built, and whether client revenue (HCDC and beyond) justifies the spend. If not, let the provisional lapse; the trade secret, copyright, trademark, and contract stack still stands.

The protection stack (what guards the methodology if the patent never issues)

LAYER	PROTECTS	STATUS
Trade secret	The calibration: coefficients, assumptions, market profiles	Free; starts with the HCDC contract language
Contracts	Internal-use license, confidentiality, no sublicensing	Drafted into every engagement
Copyright	The code itself	DIY, ~\$65
Trademark	"The Investment Map," the CDS brand	~\$1,350
Patent (optional 5th layer)	The mechanisms, if claims survive section 101	Provisional ~\$1,500 now; real decision at month 10

Deadline that governs everything: **provisional on file before May 4, 2027, or the patent option is gone.**

Planning support prepared with Christa's AI working session. Not legal advice; filing strategy belongs to registered counsel.